

office be ignored. In view of the visibility of his office and the effect of his actions on countless people, the President would be an easily identifiable target for suits for civil damages.³³ Cognizance of this personal vulnerability frequently could distract a President from his public duties, to the detriment of not only the President and his office but also the Nation that the Presidency was designed to serve.

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Courts traditionally have recognized the President's constitutional responsibilities and status as factors counseling judicial deference and restraint.³⁴ For example, while courts generally have looked to the common law to determine the scope of an official's evidentiary privilege,³⁵ we have recognized that the Presidential privilege is "rooted in the separation of powers under the Constitution." *United States v. Nixon*, 418 U. S., at 708. It is settled law that the separation-of-powers doctrine does not bar every exercise of juris-

burden of a trial and to the inevitable danger of its outcome, would dampen the ardor of all but the most resolute"

³³ These dangers are significant even though there is no historical record of numerous suits against the President, since a right to sue federal officials for damages for constitutional violations was not even recognized until *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971).

³⁴ This tradition can be traced far back into our constitutional history. See, e. g., *Mississippi v. Johnson*, 4 Wall. 475, 501 (1866) ("[W]e are fully satisfied that this court has no jurisdiction of a bill to enjoin the President in the performance of his official duties; and that no such bill ought to be received by us"); *Kendall v. United States*, 12 Pet. 524, 610 (1838) ("The executive power is vested in a President; and as far as his powers are derived from the constitution, he is beyond the reach of any other department, except in the mode prescribed by the constitution through the impeaching power").

³⁵ See *United States v. Reynolds*, 345 U. S. 1, 6-7 (1953) (Secretary of the Air Force); *Carl Zeiss Stiftung v. V. E. B. Carl Zeiss, Jena*, 40 F. R. D. 318, 323-324 (DC 1966), *aff'd sub nom. V. E. B. Carl Zeiss, Jena v. Clark*, 128 U. S. App. D. C. 10, 384 F. 2d 979, cert. denied, 389 U. S. 952 (1967) (Department of Justice officials).